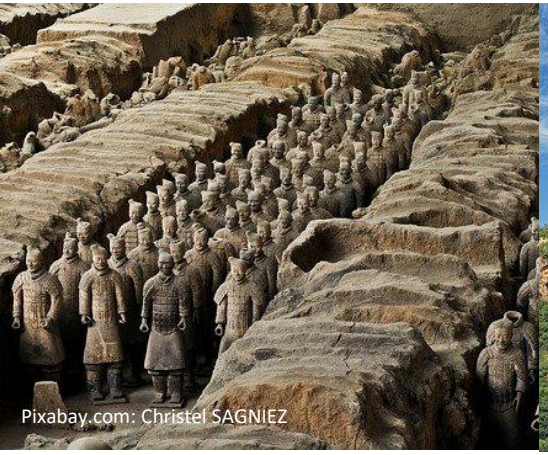
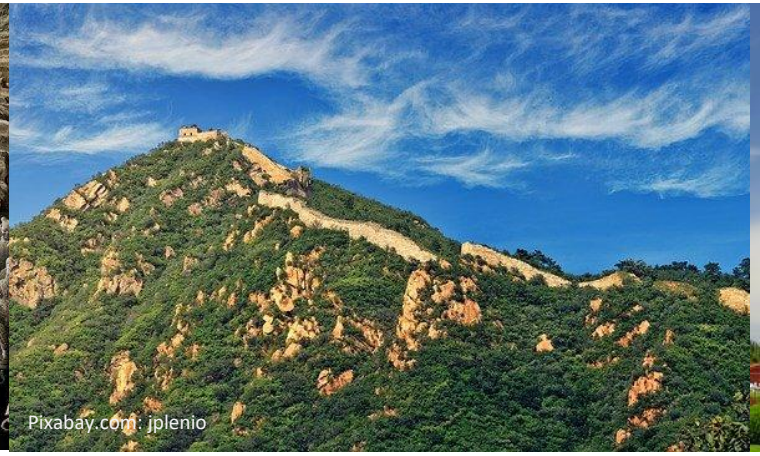
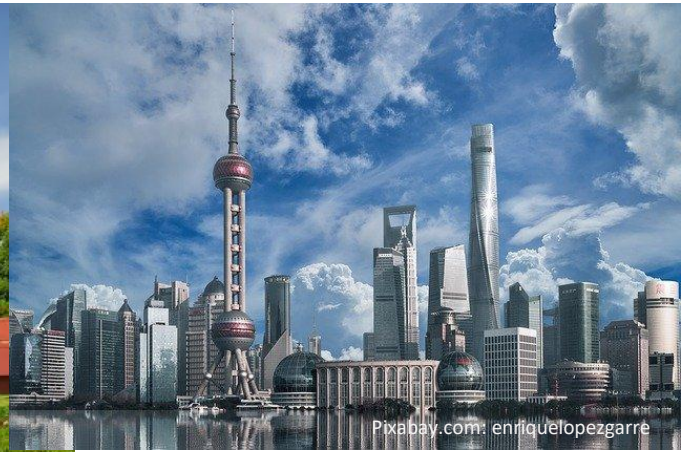

Pixabay.com: Christel SAGNIEZ


Pixabay.com: jplenio


Pixabay.com: Peggy / Marco Lachmann-Anke


Pixabay.com: enriquelopezgarre

中国概况

Chinastudien: Staatsrat (3. Semester)

Chinastudien – 中国概况

1. Einführung – Datenvalidität am Beispiel Staatsverschuldung (1.10.2025)
2. Staatsgebiet: Wirtschaftsgeographie (8.10.2025)
3. Staatsgebiet: Administrative Gliederung (15.10.2025)
4. Staatsvolk: Bevölkerung (22.10.2025)
5. Theoretische Grundlagen Politikwissenschaften und methodisches Vorgehen bei wissenschaftlichen Arbeiten (29.10.2025)
6. Politisches System: Die Kommunistische Partei Chinas (5.11.2025)
7. Staatsaufbau: Nationaler Volkskongress (12.11.2025)
8. Staatsaufbau: Zentralregierung (19.11.2025)
9. Staatsaufbau: Lokale Regierungen; Politische Konsultativkonferenz (26.11.2025)
10. Politik: Neues Normal und Made in China 2025 (3.12.2025)
11. Zivilgesellschaft – Pressezensur - Social Credit System (10.12.2025)
12. Politik Taiwans (17.12.2025)

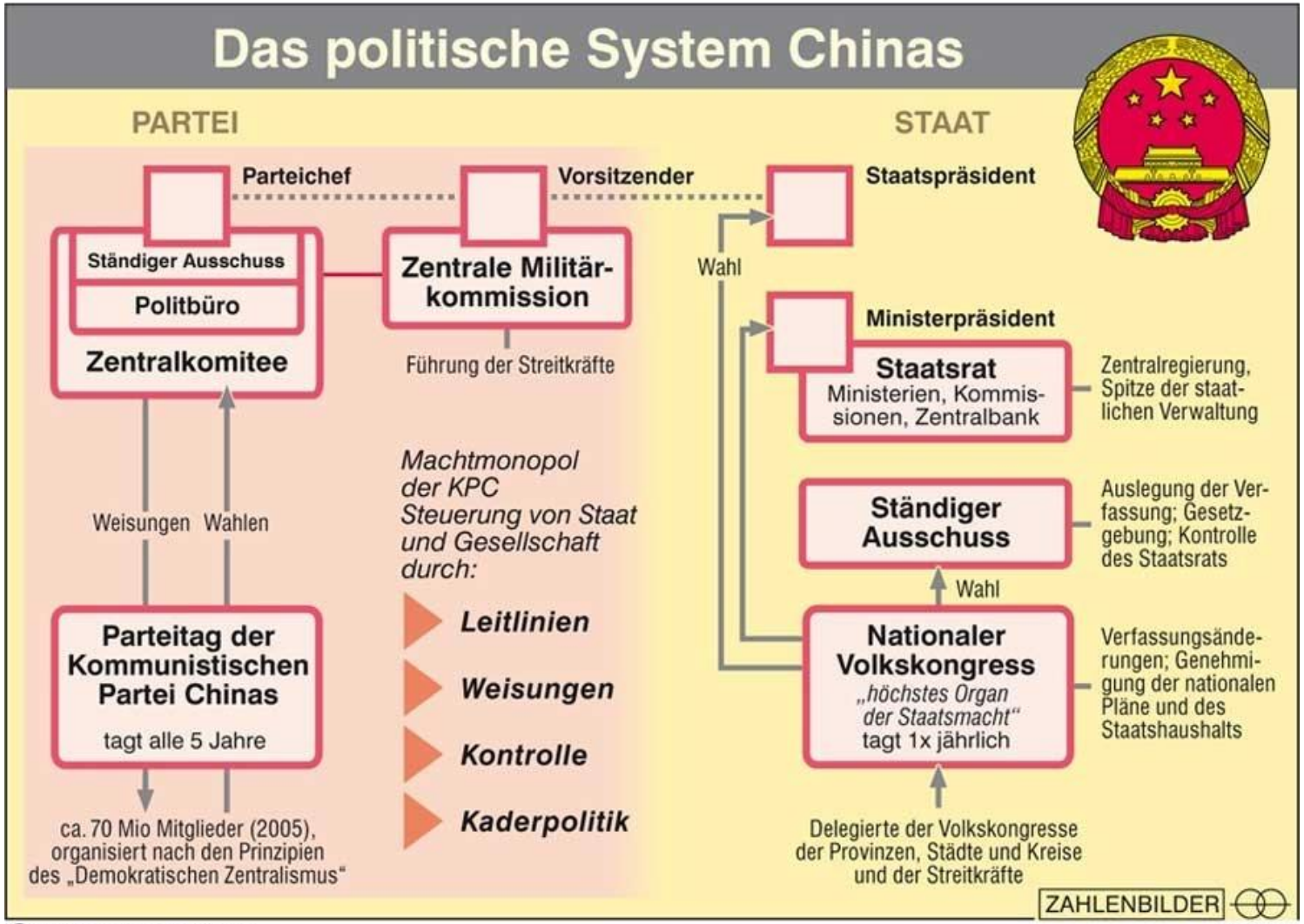
✓Übersicht: Asien

✓Geschichte

✓Landeskunde

Politik

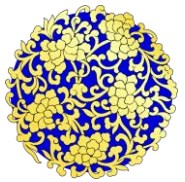
Der Staatsapparat



Zentralregierung - 中央政府 zhōngyāng zhèngfǔ

Die umfassende Durchgriffsbefugnisse der Zentralregierung gegenüber regionalen Führungen, die Gewaltenkonzentration – also die ausdrückliche Ablehnung einer Gewaltenteilung – sind wesentliche Prinzipien der Verfassungsordnung.

- Zentral ist der Führungsanspruch der Kommunistischen Partei, der auch in der Verfassung verankert ist.
- Die Kommunistische Partei und ihre Funktionäre dominieren das politische Leben auf allen Ebenen.
- Die Regierungsorgane müssen in ihren Entscheidungen Vorgaben von Parteigremien folgen.



Staatsrat - 国务院 guówùyuàn

Verfassungsrechtlich besteht der Staatsrat aus dem **Ministerpräsidenten**, mehreren Vize-Ministerpräsidenten, mehreren Staatskommissaren, den Fachministern, den Vorsitzenden der Fachkommissionen, dem Präsidenten der Oberrechnungskammer und dem Generalsekretär.

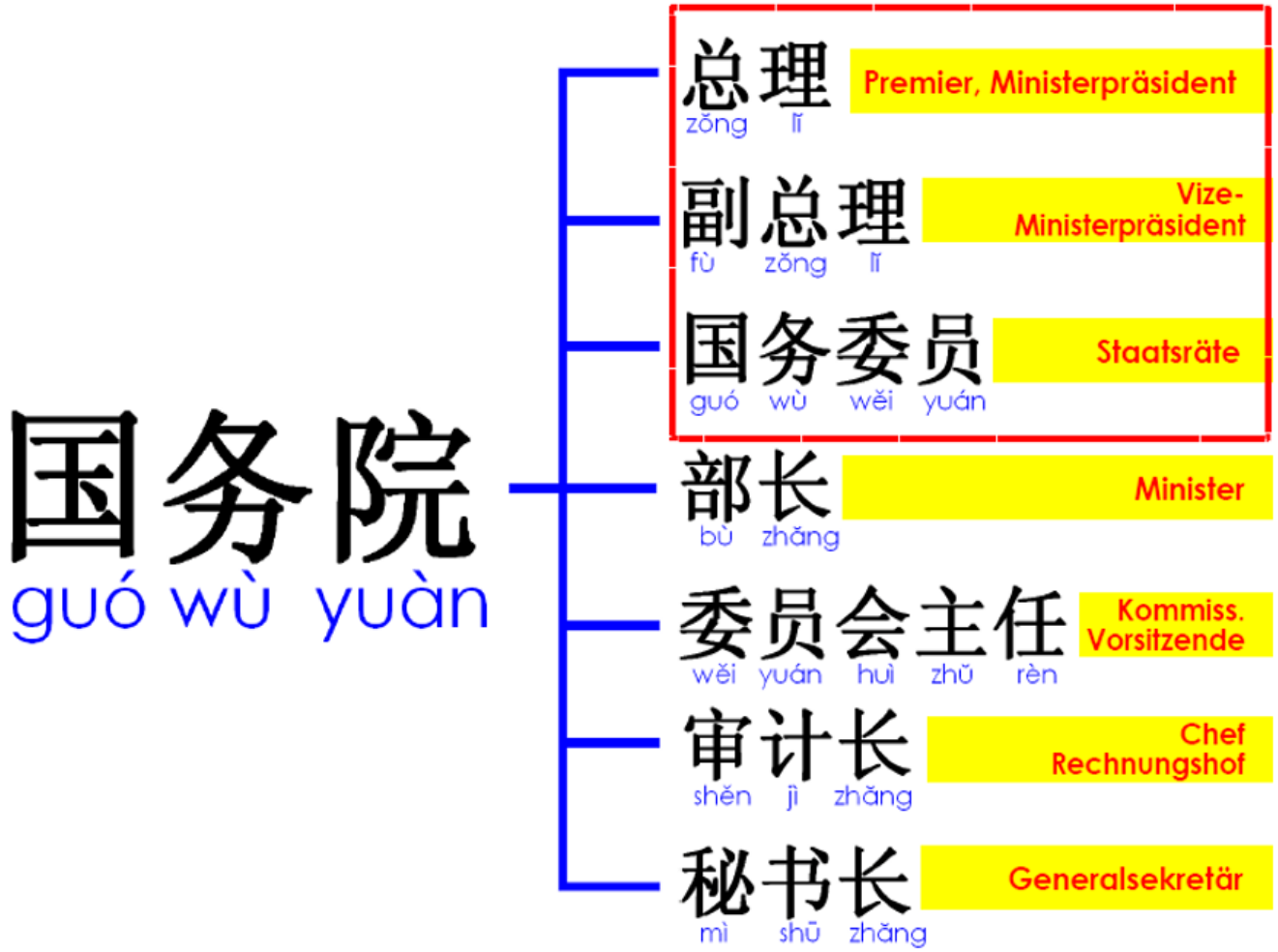
- Das innere Kabinett besteht aus dem Ministerpräsidenten und fünf Staatsratskommissaren.
- Das äußere Kabinett besteht aus den Leitern der 28 Organe des Staatsrats auf Ministerialebene.

Staatsrat - 国务院 guówùyuàn

Organisation des Statsrates

- Premierminister/Ministerpräsident
- Vize-Premierminister
- Staatsräte
- Minister, Leiter Kommissionen
- Rechnungshof
- Generalsekretär

Staatsrat - 国务院 guówùyuàn



Members of the Executive Meeting of the 14th State Council (March 2023 – March 2028)

#	Portrait	Name	Government office(s)	Party	Party memberships
1		Li Qiang 李强	Premier	CCP	Politburo Standing Committee Secretary, State Council Party Group [zh]
2		Ding Xuexiang 丁薛祥	Vice Premier (first-ranked)	CCP	Politburo Standing Committee Deputy Secretary, State Council Party Group [zh]
3		He Lifeng 何立峰	Vice Premier	CCP	Politburo State Council Party Group [zh]
4		Zhang Guoqing 张国清	Vice Premier	CCP	Politburo State Council Party Group [zh]
5		Liu Guozhong 刘国中	Vice Premier	CCP	Politburo State Council Party Group [zh]
6		General Li Shangfu 李尚福	State Councillor Minister of National Defense	CCP	Central Military Commission State Council Party Group [zh]
7		Police Commissioner-General [zh] Wang Xiaohong 王小洪	State Councillor Minister of Public Security	CCP	Secretariat Deputy Secretary, Central Political and Legal Affairs Commission State Council Party Group [zh]
8		Wu Zhenglong 吴政隆	State Councillor Secretary-General of the State Council	CCP	State Council Party Group [zh] Secretary, State Council Organs Party Group [zh]
9		Shen Yiqin 谌贻琴	State Councillor	CCP	State Council Party Group [zh]
10		Qin Gang 秦刚	State Councillor Minister of Foreign Affairs	CCP	State Council Party Group [zh]

总理 Zǒnglǐ
Ministerpräsident

副总理 Fù zǒnglǐ
Vize-Ministerpräsidenten

国务委员 Guówù wěiyuán
Staatsräte

Constituent Departments of the 13th State Council

Ministry of Foreign Affairs 外交部
Ministry of National Defense 国防部
National Development and Reform Commission (NDRC) 国家发展和改革委员会
Ministry of Education (MOE) 教育部
Ministry of Science and Technology 科学技术部
Ministry of Industry and Information Technology (MIIT) 工业和信息化部
National Ethnic Affairs Commission (NEAC) 国家民族事务委员会
Ministry of Public Security (MPS) 公安部
Ministry of State Security (MSS) 国家安全部
Ministry of Civil Affairs (MCA) 民政部
Ministry of Justice 司法部
Ministry of Finance 财政部
Ministry of Human Resources and Social Security (MOHRSS) 人力资源和社会保障部
Ministry Natural Resources 自然资源部
Ministry of Ecology and Environment 生态环境部
Ministry of Housing and Urban-Rural Development 住房和城乡建设部
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Ministry of Water Resources 水利部
Ministry of Agriculture and Rural Affairs 农业农村部
Ministry of Commerce (MOFCOM) 商务部
Ministry of Culture and Tourism 文化和旅游部
National Health Commission 国家卫生健康委员会
Ministry of Veterans Affairs 退役军人事务部
Ministry of Emergency Management 应急管理部
People's Bank of China (PBC) 中国人民银行
National Audit Office 审计署

Organizations directly under the State Council

Ministry-level

1. General Administration of Customs of the People's Republic of China (中华人民共和国海关总署)
2. State Administration of Taxation (国家税务总局)
3. State Administration for Market Regulation (国家市场监督管理总局)
4. National Radio and Television Administration (国家广播电视总局)
5. General Administration of Sport (国家体育总局)
6. Counsellors' Office of the State Council (国务院参事室)

Sub-ministry-level

1. National Bureau of Statistics (国家统计局)
2. China International Development Cooperation Agency (国家国际发展合作署)
3. National Healthcare Security Administration (国家医疗保障局)
4. National Government Offices Administration (国家机关事务管理局), formerly the "Government Offices Administration of the State Council" (国务院机关事务管理局)

Institutions directly under the State Council

Ministry-level

1. Xinhua News Agency (新华通讯社), administered by the CCP Central Publicity Department
2. Chinese Academy of Sciences (中国科学院)
3. Chinese Academy of Engineering (中国工程院)
4. Chinese Academy of Social Sciences (中国社会科学院)
5. Development Research Center of the State Council (国务院发展研究中心)
6. China Media Group (中央广播电视总台), administered by the CCP Central Publicity Department
7. China Banking and Insurance Regulatory Commission (中国银行保险监督管理委员会)
8. China Securities Regulatory Commission (中国证券监督管理委员会)

Sub-ministry-level

1. China Meteorological Administration (中国气象局)

National Administrations administrated by ministry-level agencies

Ministry-level

1. National Public Complaints and Proposals Administration (国家信访局), administrated by the State Council General Office
2. National Food and Strategic Reserves Administration (国家粮食和物资储备局), administrated by the National Development and Reform Commission
3. National Energy Administration (国家能源局), administrated by the National Development and Reform Commission
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Ministry of National Defense 国防部
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People's Bank of China (PBC) 中国人民银行
National Audit Office 审计署

Zentralregierung - 中央政府 zhōngyāng zhèngfǔ

- The **National Development and Reform Commission**, known as the "little cabinet", has been a formidable power centre in the world's second-biggest economy, with its portfolio ranging from approving high-speed railway projects to the electricity rates for every household. It will remain one of the 26 bodies under the State Council, but many of its functions will be taken over by other agencies, according to the plan presented to the National People's Congress.

(South China Morning Post vom 14. 3. 2018: Too big and too powerful': why Xi Jinping is reining in China's economic planning agency)

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(South China Morning Post vom 14. 3. 2018: Too big and too powerful': why Xi Jinping is reining in China's economic planning agency)

Zentralregierung - 中央政府 zhōngyāng zhèngfǔ

- Aufgaben der National Development and Reform Commission (NDRC) 国家发展和改革委员会:
  - Erstellung von Plänen als Unterkategorie der Fünfjahrespläne, aber auch

Investitionskataloge



中华人民共和国国家发展和改革委员会
中华人民共和国商务部
令
第52号

中华人民共和国国家发展和改革委员会
中华人民共和国商务部
令
第52号

《鼓励外商投资产业目录（2022年版）》已经2022年7月29日国家发展和改革委员会第22次委务会议审议通过和商务部审签，并经国务院同意，现予以发布，自2023年1月1日起施行。

国家发展和改革委员会主任：何立峰
商务部部长：王文涛
2022年10月26日

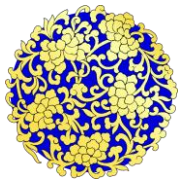
附件：
《鼓励外商投资产业目录（2022年版）》.pdf
《鼓励外商投资产业目录（2022年版）》.ofd

Zugangskontrollen

- Bei Gründung einer Niederlassung bevorzugen ausländische Investoren Errichtung von 100%igen Tochtergesellschaften
- Möglicherweise ist Joint Venture einziges zulässiges Investitionsinstrument
- Beschränkungen im Investitionskatalog geregelt **(Catalogue for Directing Foreign Investment — 投资产业指导目录),** aktuell 2022

Zugangskontrolle (alte Version)

- Unterteilt in zwei Kategorien:
  - beschränkt (限制 - xiànzhì)
  - verboten (禁止 - jìnzhǐ)
- Nicht erwähnte:
  - Das Fehlen einer Branche auf der Negativliste bedeutet lediglich, dass ausländische Investoren in dieser Branche genauso behandelt werden wie chinesische Investoren.
  - Zum Beispiel, obwohl militärische, polizeiliche, politische und kommunistische Spezialausbildungseinrichtungen von der Negativliste gestrichen wurden, sind diese Industrien auch für chinesische Investoren blockiert, was bedeutet, dass es keine effektive Veränderung für ausländische Investoren gibt.
- Von den 27 Sonderverwaltungsmaßnahmen, die von der Liste 2015 gestrichen wurden, beziehen sich 10 auf die Fertigung, vier auf die Finanzierung und vier auf andere Dienstleistungen



Zugangskontrolle (alte Version)

Unterschiedliche Negativlisten in Gebrauch

Im April 2015 stellten NDRC und Handelsministerium zwei Negativlisten auf:

- eine kurze Version für ausländische Investitionen, die insgesamt 122 Beschränkungen umfasst und in den PFHZ erprobt werden soll;
- eine lange Version für allgemeine Investitionen, die 328 Restriktionen aufführt und zunächst befristet in Shanghai, Tianjin, Fujian und Guangdong getestet werden soll

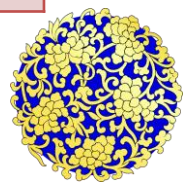
- Handelsministerium am 8. Oktober 2016 anlässlich des Inkrafttretens der drei neuen Gesetze erklärte, der Katalog für ausländische Investitionen von 2015 finde weiterhin Anwendung, bis die ausführliche Version der Negativliste 2018 endgültig fertiggestellt sei

Vergleich der Kataloge von 2011, 2015 und 2017



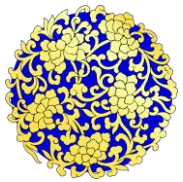
Ausländische Investitionen: 2.) Zugangskontrolle

Beschränkt	Projekte mit überholter Technologie, die Rohstoffquellen nicht erhalten, die schrittweise geöffnet werden, wie Bankensektor, Rechtsberatung, Telekommunikation
Verboten	Investitionen in Industrie, welche nationale Sicherheit oder Umwelt gefährden, kulturelles Erbe Chinas betreffen, von strategischer Bedeutung sind, z. B. Ausbeutung seltener Mineralien, Produktion von Waffen, Bau und Betrieb von Stromnetzen, Betrieb von Grundschulen etc.



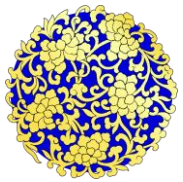
Zugangskontrolle

- Beschränkung der Investitionsform (Verwaltungsmaßnahme):
  (1) JV ohne weitere Anforderungen als allein zulässige Investitionsform
  (2) JV mit Mehrheitsanteil der chinesischen Seite, d. h. sämtliche an dem JV beteiligte chinesische Partner müssen zusammenmehr als 50 % der Anteile halten
  (3) JV mir relativem Mehrheitsanteil der chinesischen Seite (Summe der chinesischen Anteile muss größer als die Anteile jedes einzelnen ausländischen Investors sein)



Ausländische Investitionen: 2.) Zugangskontrolle

- Umgehungsmöglichkeiten durch Treuhand oder verschiedene Lizenz-, Service- oder Leasingverträge
- Alles rechtlich fragwürdige Konstruktionen



National Administrations administrated by ministry-level agencies

Ministry-level

1. National Public Complaints and Proposals Administration (国家信访局), administrated by the State Council General Office
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Eisenbahn – 铁路 tiělù

Der Eisenbahnverkehr wird überwiegend von der Staatsbahn China Railway (CR, 中国铁路 Zhōngguó Tiělù) betrieben.
Der Eisenbahnverkehr findet auf dem längsten Streckennetz Asiens statt und deckt alle Provinzen ab. Alle Städte mit mehr als 200.000 Einwohnern sind an das Eisenbahnnetz angeschlossen, 80 % davon auch an das Hochgeschwindigkeitsnetz.



Institutions directly under the State Council

Ministry-level

1. Xinhua News Agency (新华通讯社), administered by the CCP Central Publicity Department
2. Chinese Academy of Sciences (中国科学院)
3. Chinese Academy of Engineering (中国工程院)
4. Chinese Academy of Social Sciences (中国社会科学院)
5. Development Research Center of the State Council (国务院发展研究中心)
6. China Media Group (中央广播电视总台), administered by the CCP Central Publicity Department
7. China Banking and Insurance Regulatory Commission (中国银行保险监督管理委员会)
8. **China Securities Regulatory Commission (中国证券监督管理委员会)**

Sub-ministry-level

1. China Meteorological Administration (中国气象局)

Wertpapierhandel – 证券交易 zhèngquàn jiāoyì



Wertpapierhandel – 证券交易 zhèngquàn jiāoyì

Chinas Finanzreformern kamen die Aktienmärkte vor wie ein Wunderwerkzeug: Sie verteilten Kapital viel effizienter als die trägen Staatsbanken. Gleichzeitig mehrten sie den Wohlstand von Millionen von Bürgern, die ihr Geld in Aktien anlegten. Eine Win-win-Situation, wie Chinas Regierungsvertreter betonten. Aber dann brachen die Aktienkurse ein.



National Administrations administrated by ministry-level agencies

Ministry-level

1. National Public Complaints and Proposals Administration (国家信访局), administrated by the State Council General Office
2. National Food and Strategic Reserves Administration (国家粮食和物资储备局), administrated by the National Development and Reform Commission
3. National Energy Administration (国家能源局), administrated by the National Development and Reform Commission
4. State Administration of Science, Technology and Industry for National Defense (国家国防科技工业局), administrated by the Ministry of Industry and Information Technology
5. State Tobacco Monopoly Administration (国家烟草专卖局) (officially sharing its office with China National Tobacco Corporation), administrated by the Ministry of Industry and Information Technology
6. National Immigration Administration (国家移民管理局), additional name "Exit and Entry Administration" (中华人民共和国出入境管理局) for Mainland-Hong Kong-Macau-Taiwan border control, administrated by the Ministry of Public Security
7. National Forestry and Grassland Administration (国家林业和草原局), additional name "National Park Administration" (国家公园管理局), administrated by the Ministry of Natural Resources
8. National Railway Administration (国家铁路局), administrated by the Ministry of Transport
9. Civil Aviation Administration of China (CAAC) (中国民用航空局), administrated by the Ministry of Transport
10. State Post Bureau (国家邮政局), administrated by the Ministry of Transport, officially sharing its office with China Post Group Corporation
11. National Administration for Rural Revitalization (国家乡村振兴局) (established on 25 February 2021), administrated by the Ministry of Agriculture and Rural Affairs
12. National Cultural Heritage Administration (国家文物局), administrated by the Ministry of Culture and Tourism
13. National Administration of Traditional Chinese Medicine (国家中医药管理局), administrated by the National Health Commission
14. National Bureau of Disease Control and Prevention (国家疾病预防控制局) (established on 13 May 2021), administrated by the National Health Commission
15. National Mine Safety Administration (国家矿山安全监察局), administrated by the Ministry of Emergency Management
16. State Administration of Foreign Exchange (国家外汇管理局), administrated by the People's Bank of China
17. National Medical Products Administration (国家药品监督管理局), formerly China Food and Drug Administration (CFDA) (国家食品药品监督管理总局), now administrated by the State Administration for Market Regulation
18. National Intellectual Property Administration (国家知识产权局), administrated by the State Administration for Market Regulation

National Public Complaints and Proposals Administration (国家信访局)



National Public Complaints and Proposals Administration (国家信访局)



- Teils Masseneingaben bis zu 10.000 Menschen, ganze Eingabedörfer um Beijing herum
- Teils gewaltsame Verhinderung von Eingaben mittels Racheaktionen von lokalen Behörden
- Staatsrat hat Eingabeverordnung erlassen (28.10.1995, Revision 1.5.2005, 信访条例 - Xìnfǎng tiáolì)
- Gilt nur für Regierung, nicht für Volkskongress und Justizorgane